

Colo. Lic. Paraprofe. R. Profe. Cond. 8.5

Rule 8.5 - Disciplinary Authority; Choice of Law

(a) An LLP admitted to practice in this jurisdiction is subject to the disciplinary authority of this jurisdiction, regardless of where the LLP's conduct occurs. An LLP may be subject to the disciplinary authority of both this jurisdiction and another jurisdiction for the same conduct.

(b) In any exercise of the disciplinary authority of this jurisdiction, the rules of professional conduct to be applied shall be as follows:

(1) for conduct in connection with a matter pending before a tribunal, the rules of the jurisdiction in which the tribunal sits, unless the rules of the tribunal provide otherwise; and

(2) for any other conduct, the rules of the jurisdiction in which the LLP's conduct occurred, or, if the predominant effect of the conduct is in a different jurisdiction, the rules of that jurisdiction shall be applied to the conduct. An LLP shall not be subject to discipline if the LLP's conduct conforms to the rules of a jurisdiction in which the LLP reasonably believes the predominant effect of the LLP's conduct will occur.

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Amended and Adopted by the Court, En Banc, April 13, 2023, effective 7/1/2023.
